

SENATE No. 1284

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the interception of wire and oral communications.

PETITION OF:

NAME:

John C. Velis

DISTRICT/ADDRESS:

Hampden and Hampshire

SENATE No. 1284

By Mr. Velis, a petition (accompanied by bill, Senate, No. 1284) of John C. Velis for legislation relative to the length of wiretap warrants. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1141 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the interception of wire and oral communications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection A of section 99 of chapter 272 of the General Laws is hereby
2 amended by inserting a new paragraph, following the second paragraph at line 21:-

3 The General Court further finds that in certain circumstances normal investigative
4 procedures may not be effective in the investigation of specific illegal acts not associated with
5 organized crime as enumerated in clause (b) of paragraph 7 of subsection B of this section.

6 Therefore, law enforcement officials may be permitted to use modern methods of electronic
7 surveillance, under strict judicial supervision, when investigating these specific enumerated
8 crimes, after a showing that normal investigative procedures have been tried and have failed or
9 reasonably appear unlikely to succeed if tried.

SECTION 2. Subsection A of section 99 of chapter 272 of the General Laws is hereby amended by striking the last sentence of the third paragraph, lines 25 through 27, and inserting in place thereof the following:-

The use of such devices by law enforcement officials must be conducted under strict judicial supervision and must be limited to the investigation of designated offenses as defined in paragraph 7 of subsection B of this section.

SECTION 3. Subsection B of section 99 of chapter 272 of the General Laws is hereby amended by striking out the definition of “designated offense” in lines 66 through 77 and inserting in place thereof the following:-

7. The term "designated offense" shall include (a) the following offenses in connection with organized crime as defined in the preamble: arson, the illegal use, possession or carrying of a firearm, sawed-off shotgun, machine gun, assault weapon, large capacity weapon or covert weapon as defined by section 121 of chapter 140, assault and battery with a dangerous weapon, extortion, bribery, burglary, embezzlement, forgery, gaming in violation of section seventeen of chapter two hundred and seventy-one of the general laws, intimidation of a witness or juror, kidnapping, larceny, lending of money or things of value in violation of the general laws, money laundering in violation chapter 267A, mayhem, murder, any offense involving the possession or sale of a narcotic or harmful drug, perjury, prostitution, robbery, subornation of perjury, any violation of this section, being an accessory to any of the foregoing offenses and conspiracy or attempt or solicitation to commit any of the foregoing offenses; and (b) the following offense not in connection with organized crime, as referenced in paragraph 3 of the preamble: murder in the first degree.